

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No.47249 of 2023

Md. Sabbir Khan

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Zainal Abedin, with

Mr. Md. Anisur Rahman (Raihan), Advocate

.... For the petitioner

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

... For the State

Heard and Judgment on 09.01.2024

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in Mathbaria Police Station Case No.12 dated 14.11.2021 corresponding to G.R. Case No.373 of 2021 (Mathbaria) under Sections 143/341/323/326/307/302/506(II)/34 of the

Penal Code, now pending in the Court of learned Chief Judicial Magistrate, Pirojpur and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that on the way back to home victim Rahat and his friends were suddenly attacked by accused petitioner Md. Sabbir Khan and others due to previous enmity and co-accused Zahid struck a dagger blow on the chest and accused petitioner Md. Sabbir Khan struck axe blow on the head of victim Rahat causing his death.

Mr. Zainal Abedin, learned Senior Advocate for the petitioner Md. Sabbir Khan submits that above mentioned co-accused Zahid and all other accused persons of this case excepting petitioner Md. Sabbir Khan are on bail. On conclusion of investigation police submitted a charge sheet in this case. But on the basis of a naraji petition of the informant the case has been sent for further investigation. There is no certainty as to when the trial of the case will begin. The petitioner is in custody for 11(eleven) months.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the State raises objection against granting bail to the petitioner at this point of time alleging that he strike a fatal blow causing death of victim Rahat.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from the averments made in the FIR that victim Rahat and his companions were subjected to sudden attack by petitioner Md. Sabbir Khan and other co-accused persons while they were returning from a football match. All other 11 accused persons have been granted bail earlier. It turns out from record that the ejahar was lodged after conclusion of the post-mortem examination of the dead body of victim Rahat. The Investigation Officer on conclusion of investigation submitted a charge sheet but on the basis of a naraji petition submitted by the informant the case has been sent for further investigation on 21.11.2023.

On consideration of above materials on record we find substance in this petition under Section 498 of the Code of

Criminal Procedure and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is hereby made absolute.

Let the accused petitioner Md. Sabbir Khan, son of Md. Shohidul Khan be enlarged on bail subject to furnishing bail bond to the satisfaction of the learned Chief Judicial Magistrate, Pirojpur.

The concern Court is at liberty to cancel the bail, if the accused-petitioner misuses the privilege of bail

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.

MD. MASUDUR RAHMAN
BENCH OFFICER